

LITTLE BLUE BOOK NO. 1459
Edited by E. Haldeman-Julius

The Psychology of the Criminal

Leo Markun

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*** START OF THE PROJECT GUTENBERG EBOOK THE
PSYCHOLOGY OF THE CRIMINAL ***

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The Psychology of the Criminal

Leo Markun

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THE PSYCHOLOGY OF THE CRIMINAL

THE NATURE OF THE PROBLEM

Let us define a criminal as a person who has committed a crime, whether or not he is known as such. A crime, according to Austin and Stephen, is “an act or omission that the law punishes.” Perhaps this definition does not sufficiently set apart crimes from torts and violations of contract, for which penalties payable to individuals are provided. I prefer to think of a crime as an act or omission which is punishable after public prosecution.

It is a crime to spit on the floor in certain places, it may be one to drive an automobile around the corner at a speed higher than eight miles an hour. There are many parts of the United States where mocking at the name of Jesus Christ constitutes the crime of blasphemy. It is also a crime to kill a man who refuses to hold up his hands to permit his pockets to be rifled, or to give aid and comfort to the enemy of the country of which the offender is a citizen.

In our wide sense of the word, crime is extremely common. There can be little doubt that, among the normal adults now resident in the United States, the criminals outnumber the non-criminals. It does not affect the argument that many men and women have violated the law without so much as being aware of the fact: ignorance, according to an old rule, is no defense.

Moreover, it is not extremely rare and unusual to be arrested. Many minor offenders are summoned to court instead of being lodged in jail while awaiting trial, but usage in this respect is not at all consistent. Especially since the automobile has become popular, receiving a summons and having to pay a fine have lost their power to confer ignominy, except as they imply lack of influence with the local politicians.

Being jailed is more disgraceful. It shows, if the prisoner is yet unconvicted, either that he is unable to provide a bond or that he is charged with a crime which is considered very serious. If the person is in jail after having been convicted, it may be because he is unable to pay his fine. While poverty and lack of friends are not formally crimes in any modern state, they are conditions that do tend to degrade.

It may be worth while to pause a moment to consider the psychology of minor offenses. Why do automobile drivers violate the speed limits set up by law? Perhaps chiefly because they would be considered queer people if they didn't. In other words, the notion of propriety in the matter of motor car speed, especially among people who habitually drive or ride in automobiles, has been somewhat different from that expressed in statutes and ordinances. Since the ordinary citizen has become a motorist, a tendency has appeared to relax the restrictions, and even to abolish all definite speed limits in country districts.

Also, it is a sort of game to run beyond the established limit without being caught. The excitement of going sixty or seventy miles an hour is enhanced by the thought that there are policemen and deputy sheriffs out on the road to prevent that sort of thing. For the rich man, it is a poker game or dice match with very small stakes. For the poorer person, the fine which may be imposed looms up large, but this consideration hardly restrains him, especially since he knows that not one offender in a thousand is actually brought to court.

Let us consider a group of college boys celebrating a football victory or the being released from the requirement of wearing freshman caps. Very frequently, such a celebration turns into a riot. The young men take possession of a theater or a subway car, yell and throw things without consideration for the feelings of those who do not share their joy, and even destroy valuable property. Their excuse is that they are carrying on old traditions, keeping up college spirit. They are hardly conscious of any wrongdoing. Because they are in a crowd, rioting seems the socially proper thing to do, so long as their fellows are all engaged in the same form of pleasure.

The approbation or disapprobation of the community counts for much, but the real community in which a man lives is not always the cluster of houses

about his residence. Thus, in the American Bible Belt, opposition to the church, though not a crime, is considered an anti-social act. But the village atheist, having contacts with an outer world through books and magazines, may be fortified against the opinion of his neighbors. Or, to take an even clearer example, opposition to the short skirts, bobbed hair, and cocktail-shaking associated with the new youth still exists; but the young girl lives primarily in her "crowd" or "set," and heeds its standards more than those of her perhaps soberer elders.

Ordinarily, we think of a criminal as one who has committed a serious crime or who is accustomed to support himself by means of unlawful practices. The line is not very easily drawn. It is, everywhere in the United States, a crime to sell intoxicating liquor for beverage purposes. Yet, if this narrower conception of the criminal involves the idea of great moral depravity, it does not, in many communities, include the bootlegger. Smuggling has been treated as a serious crime even in times and places where it has been very common.

What is a serious crime? Technically, we can separate those delicts for which indictments lie from minor offenses, felonies from misdemeanors, or crimes which may and usually do involve penitentiary or state prison sentences from those for which the usual penalty is a fine or a jail sentence. To some extent, differences in the prescribed penalties reflect popular opinion about degree of turpitude. This is especially true in a democracy. Smuggling flourished most in England when the mass of the people went unrepresented in Parliament.

There is always some discrepancy between the laws and the *mores* or morals and manners of a civilized community. Certain actions which are generally considered disgraceful and wicked are not prosecuted in the courts at all. Some deeds and omissions which are not considered particularly vicious are subject to heavy penalties, if it is possible to secure convictions.

Generally speaking, a jury will not convict a man for a crime which the members consider harmless. If nine-tenths of the people of such a city as New York or Boston are opposed to Prohibition, an increase in the penalty for the sale of liquor is certain to make the task of securing a guilty verdict even more difficult than it has already been. If, in a Kentucky county, there

is a widespread feeling that duties of revenge are binding upon all honorable men, the feud killer is not at all likely to suffer the prescribed punishment for murder.

It is, strictly speaking, only the law that makes the criminal. Perhaps it is wicked to sell whisky. If so, it may be that the liquor-seller in England is a bad man, though he obeys all the statutes that are binding upon him. The preacher may call him a criminal, if he likes; but that is merely a term of abuse, in no sense a scientific description. In the same way, whatever we think of Prohibition, we must consider the man who sells liquor in the United States a criminal. Also, George Washington and Benjamin Franklin remained guilty of treason against the British crown until the independence of the United States was established. In calling them criminals, I imply no moral condemnation. Franklin himself knew that, if the rebel leaders did not all hang together, there was grave danger of their hanging separately.

When the Volstead Act changed bartending from a licit occupation to a crime, what sudden change took place in the men who practiced it? The personnel did not remain unaltered, of course. Some who had been proprietors or employees in the liquor business sought other fields for their talents. Some men who had formerly done other work or engaged in crimes already existing became manufacturers, handlers, and vendors of whisky and beer. But, for our present purpose, the important thing is to discover what psychological change took place in Bill Brown, who presided over the free lunch in the good old days, when the pretzels were put away and the price tags much altered.

He felt that he was thenceforth to run new risks, and to be paid well for running them. Did he think of himself as a sinner or wrong-doer? Hardly. He was simply continuing to do what he had previously been in the habit of doing without hindrance from the authorities. As for the violation of law, that had been not at all unusual in his line of work. It was recognized in many cities as a natural thing for saloonkeepers to pay bribes for the privilege of keeping their business open on Sunday. The money handed over to police officers was simply considered an additional tax, of a somewhat informal nature. Some other businessmen who were at the same time forbidden by law to engage in their usual vocations on Sunday were permitted by custom to keep their doors open without the payment of bribes.

The fine, which is a criminal penalty, is often confused with the license fee. Thus, brothel proprietors have been brought into court with a certain amount of regularity and each time fined a uniform amount. Theater owners have arranged to operate on Sunday and to pay a small sum in court each Monday.

Without redefining *crime* and *criminal*, it may be said that we are interested here in acts and omissions which the community where the offense is committed holds to involve considerable turpitude, and in the peculiarities of the men involved. Indeed, there is no exact line of demarcation, even at a given time and place, between the delict of great magnitude and that which is more or less pardonable. By almost any definition of crime which might be put forward today in a civilized country, the thief is a criminal. Yet men who are caught stealing a little coal to provide fire for freezing wives and children are not always punished. Sometimes they are provided with fuel and food enough to carry them over the winter, and positions are found for them.

There is no such thing as an act or omission which is criminal according to the laws of all times and places. It has been permissible to cohabit with a sister, to slay a grown son without stating any reason for doing it, to rob and to steal. Crime depends upon a complex variety of circumstances. Acts forbidden by law or primitive custom are not criminal unless a penalty carried out by the community as a whole or its agents is prescribed. The murderer who must pay the relatives of the person he slays blood money or flee before their private vengeance is guilty of a tort rather than a crime.

SOME HISTORIC CONSIDERATIONS

A crime is something that is considered socially injurious. For primitive man, it is especially a sinful act or omission that is calculated to bring down the wrath of a divinity unless the offense is expiated. Thus, it may be much worse for a priest to allow the sacred flame of the village to go out than it would be for him to kill a person who had insulted him. The great Calvin, living in the enlightened period of the Protestant Reformation, considered it necessary to have that dreadful wretch Servetus, who was wicked enough to deny the Holy Trinity, put to death for the greater glory of God. Whether it was God the Father, God the Son, or God the Holy Ghost, or all three in one, who desired the death of heretics, I cannot tell; but perhaps Calvin, a greater theologian than I, did know.

We still occasionally read about trials for blasphemy or its equivalent. The offense of teaching that man descended or ascended from a lower order of animal belongs in this class; and the most frequent penalty for it, loss of the opportunity to earn a living, is not a particularly light one. It is certainly not misleading to say that the Southern mountaineers consider evolutionists criminal.

The laws of blasphemy are now generally justified on the ground, not that God would inflict a special act of vengeance on the community that left atheists or heretics unpunished, but that some form of religion, or Christianity in particular, is necessary to maintain the moral standards of a nation. There is not room here to consider the argument in detail. It is enough to say that criminals are much more likely to be religious than non-criminals; at least, this is true of those who are convicted of capital and penitentiary offenses. Mr. McCabe's Little Blue Book No. 366, *Religion's Failure to Combat Crime*, deals at some length with the observed fact that increased indifference to religion brings with it no waves of crime.

Sodomy, bestiality, and similar "unnatural" sexual offenses seem to be punished now merely because of their prohibition in the Hebrew Scriptures. Apologists for the laws that provide heavy prison sentences for homosexual persons are accustomed to say that the human race would die out if sexual

indulgence other than the normal intercourse between men and women were permitted. This, too, is the excuse for penalties against those who disseminate neo-Malthusian information. Their real offense is helping Israelitish and Christian children of God evade the divine decree to increase and multiply.

Mercier has properly pointed out that the long sentences given in Great Britain to sodomists do not deter others from committing the same crime, because the trials are conducted with the least possible amount of publicity. Neither do they operate to “reform” the offenders. In fact, many prisons are breeding-places of homosexuality. Those that are not, because the inmates are carefully kept apart, invariably stimulate autoeroticism.

If the Urning is a wicked person, as laws against sodomy seem to imply, it is certainly better that he does not become the father of children. He would transmit his wickedness to them either in the germ plasm or in the course of family relations. Moreover, some homosexual men are psychically incapable of having normal relations with women. No statute law conceivable could force them to help increase the population.

We allow witches to live, despite the Biblical prohibition, because educated people do not any longer believe them to be what they are considered by themselves and the uneducated. But it is a religious consideration, I suppose, that makes fortune-telling at least nominally criminal. Paradoxically, some spiritualists profess to foretell the future in the name of religion.

Total abstinence from intoxicants as a religious duty has been grafted upon American (Protestant) Christianity despite the clear objection to it of the mythical Jesus, the perhaps equally mythical Paul, and the very human Luther, Calvin and Wesley. Here is the reverse side of the connection between *mores* and religion; indeed, the real motives for prohibition are largely economic, though the disgrace brought upon the churches by drunken ministers in the eighteenth and nineteenth centuries has much to do with the matter.

Sociologists and anthropologists tell us that crime, sin and violations of custom are very rare among primitive peoples. Perhaps the conformity of savages has been exaggerated, because the resemblances rather than the differences between individuals of an unfamiliar class are most striking: all

Negroes or all Chinese may look alike to the white man. At any rate, there is no good evidence to support the view that advancing civilization, which increases the opportunities for crime and the variety as well, actually is the cause of a decreasing respect for the property and the person of others.

It must be kept in mind that a simple society has no mass of petty ordinances, and it is comparatively easy to be law-abiding. Skepticism about the utility of accepted rites and customs, which is spread among us through the printed page, is rare in a savage village. In the higher savage state, bloodthirstiness is likely to be a virtue rather than a vice. The slaying of a man from the next village may be a test of manhood or a heroic act, putting to death an unwanted child or an aged father simply the convenient and expected thing to do, driving a spear through a fellow-villager in a fit of anger a wrong atoneable by giving a few articles to his heir.

Our civilized society has not entirely abandoned this general attitude. The signing of a treaty or two does not postpone by a fraction of a second the coming of the next general war. Human beings are so constituted that it sometimes gives them pleasure to inflict and even to receive pain. Their algolagnia, or, as some psychologists still say, their fighting instinct, does not necessarily mean that armed conflict will prevail until men and women cease to live upon the earth; but it makes the problem of abolishing war a very difficult one. Right now, it is not murder for the citizen of one country to stick his bayonet through the viscera of the citizen whose allegiance belongs to another, so long as the two are formally belligerent. It is no crime for the executioner to pull an electric switch or release the knife of a guillotine in order to put an end to the earthly troubles of a condemned prisoner. But it is a crime for a surgeon to allow a misshapen and hopelessly idiotic infant to die, if it can be kept alive.

That treason will appear to our not very remote descendants a barbaric delict, in the same general class with heresy, now seems probable enough. At the moment, allegiance to the individual state is of great importance, especially in time of war. If it is right to kill men for the wickedness or perhaps misfortune of being able-bodied Germans, it cannot be regarded as other than merciful to lodge Americans who refuse to participate in the war in a fairly comfortable prison.

Refusal to share communal hysteria is often a crime, and a very serious one. Whether the social standard of the moment will seem right or wrong to the historians of two centuries later makes no difference: seriously anti-social conduct is criminal. And the laws, whether made by a tyrannical man, a small group, or legislators who pretty accurately reflect the attitude of the people whom they represent, are alone binding. To be sure, they may change gradually or suddenly, and the nature of crime with them. The successful rebel, instead of being hanged, drawn, and quartered, ends his life with excellent physicians about him writing bulletins to explain why it was impossible for all their knowledge and skill to save the national hero. Lenin, you know, was not one of those damned radicals who were electrocuted because, if they didn't actually commit murder, an American prison is too good for them, anyway. And he would have died the death of a criminal if he had been hanged by His Imperial Majesty's executioner.

The genuine political criminal, is to a certain extent, the hero of the ethical textbooks. That is to say, he is an altruist. It certainly makes no difference, from our present point of view, whether his Utopia is a desirable one or not. The anarchist in Mussolini's Italy, the democrat or the monarchist in Stalin's Russia, fit into the same class with the American syndicalist who is in a penitentiary on a trumped-up charge of sabotage. And we need not here inquire into the right of a government to protect itself against subversive elements, or into the advantages and disadvantages of the particular methods it employs.

Why did P. Kropotkin learn to know Russian and French prisons from the inside, when he might, as Prince Kropotkin, have stayed in more attractive places? Why did a Virginia gentleman named Washington subject himself to the penalties of treason? Perhaps the answer is somewhat similar in the two cases, except that the prospects of direct personal gain were much slimmer for Kropotkin. For fear of being misunderstood, I hasten to say that I am not an anarchist and am not comparing the greatness of the two men. Not for the world would I imply that an unsuccessful revolutionist ought to have birthday speeches dedicated to him, just like a successful one.

Some of the qualities that made a hero of Washington made a criminal of Kropotkin. The willingness to take chances, courage, the ability to derive pleasure from pain, are characteristic traits of the martyr-masochist, whatever his cause may be. The atheists who submitted to be burned at the

stake rather than recant their opinions had no heavenly bliss to look forward to. They must have found joy in the very tortures that were heaped upon them.

Since men make gods in their own images, it is not very difficult for them to conclude that the anti-social individual is devoted to or enslaved by devils. This seems to have been the very first, chronologically, of theories about the nature of the criminal. It served especially well to account for the heretic.

Later, when it became impossible for most educated people to believe in literal diabolic possession, the criminal was regarded as an inherently wicked being. Such a conception fitted best of all certain mentally diseased individuals. Men who killed and destroyed property without any apparent motive were put to death. Although there had long previously been laws prohibiting the execution of lunatics, it was not until after the French Revolution that insanity became a defense in the courts.

The view gradually developed that some classes of offenders should be separately treated. It was only a few decades ago that juvenile delinquents were segregated for detention, trial, and imprisonment. In mid-Victorian England, boys were given prison sentences for such crimes as stealing apples from an orchard and breaking a window with stones carelessly thrown; and they were punished much in the same way as adult burglars.

As late as 1897, Oscar Wilde wrote a letter to the *Daily Chronicle* in defense of a prison warder who had been dismissed “for having given some sweet biscuits to a little hungry child.” He told of having seen the boy, “for whom they had evidently been unable to find clothes small enough to fit. I had, of course, seen many children in prison during the two years during which I was myself confined.... The cruelty that is practiced by day and night on children in English prisons is incredible, except to those that have witnessed it and are aware of the brutality of the system.”

Cesare Lombroso (1835-1909) was largely responsible for the creation of a new science of criminology. While still a student of medicine, this Italian Jew wrote an essay on the connection between insanity and genius. Then, as a military surgeon during the Austro-Italian War, he made a study of Italian racial types. Later, he became interested in a famous bandit.

Examining the man's skull after his execution, he found a depression "precisely in the middle of the occiput as in inferior animals." It was this observation that led eventually to Lombroso's theory that there is a class of born criminals, distinguished by anatomical and mental peculiarities, who represent atavism or reversion to primitive type.

"It flashed across my mind," Lombroso tells us, "that many criminal characteristics not attributable to atavism, such as facial symmetry, cerebral sclerosis, impulsiveness, instantaneousness, the periodicity of criminal acts, the desire of evil for evil's sake, were morbid characteristics common to epilepsy, mingled with others due to atavism." According to Lombroso, "epilepsy represents the genus of which criminality and moral insanity are the species." The born criminal is an epileptic with "that desire for evil for its own sake which is unknown to ordinary epileptics."

Not all criminals, but about a third of them, seemed to him to fit into this class. They are distinguishable, we are told, by such signs or stigmata as enormous jaws, strong canine teeth, long arms, little hair on the face and much on the body, and the projection of the lower part of the face and jaws, as well as comparative insensibility to pain.

Lombroso's views became quickly popular, and he attracted a host of disciples, especially in Italy, who worked away confidently at what they considered the new science of criminal anthropology. His criminal phrenology and physiognomy, like other systems of character reading from the head and face^[1], have proved entirely untenable; but the views about penal methods which he somewhat incongruously connected with them were widely influential.

Perhaps Lombroso's real importance consists not in his assertion that a third of all criminals are such innately, but rather in his pointing out that a full two-thirds commit single crimes or even engage in lawbreaking as a profession simply because of environmental factors. Certainly he focused public attention on cause and effect in the development of criminals, and thus helped the people who were already working for a more rational penology.

Lombroso denied that the idea of punishment could ever be useful. He placed the prevention of crime first in importance, with cure or reform second and the segregation of incurable criminals as a last resort. He

considered the probation system, which was being worked out chiefly in the United States, a matter of great importance.

CRIMINAL BEHAVIOR

Crime presents so many different phases, and the conception of it changes so greatly from place to place and time to time, that only one constant element can be found: the disobedience to the social will as generally understood or, in a community of complex civilization, as officially stated. As I have already tried to show, society is divided up in many ways, so that the standards of one's class, sex, profession, age, or neighborhood may count for almost as much with us as the formal regulations of the state.

The boy who is brought up in a congested tenement, especially if his parents exercise little supervision and control over him, is likely to be enrolled into a gang. That becomes the little world in which he desires to be a hero. Statute laws are very remote things. He may hear of prisons, but they are places where "tough guys" receive the rewards for their bravery, or where they may display their stoicism. Thus the first impulses to juvenile delinquency arise; and early crimes, by bringing the young offender into contact with experienced criminals, confirm him as an anti-social person.

It is true enough that not all the children of the poor, not all who join boyish gangs and steal potatoes or fight with sticks and stones to prove their manliness, afterward become dangerous criminals. Many respected citizens have lived in the slums or in ramshackle houses on the outskirts of villages and committed childish offenses. Probably it is often a matter of chance whether a kindly physician or a swaggering petty thief becomes the ideal man whom a boy tries to emulate. Perhaps it is greater courage that turns one man into a burglar while the neighbor of his childhood becomes a plumber, as honest as the ethics of his profession permit him to be.

Most penologists defend punishment on the ground that it deters people from committing crimes. Thus, it is supposed that I do not murder my neighbor, no matter how long and how badly he plays on the ukulele, because I object to being fastened down to a chair of unattractive design and having an electric current passed through me until my heart stops beating. Yet the willingness to face death is, under some circumstances, supposed to be virtuous.

Why is Lindbergh a great national hero? His skill as an aviator does not account for the popular feeling, since there are, surely a dozen other Americans who possess an equal amount. He was, indeed, very fortunate on his trip to Paris by air, and good luck is much honored by the people. There are some other factors—for instance, his “good habits” endear him to one party, while his earnest efforts to prove that he is not a prig prevent them from making him unpopular with the opposite one—but spectacular courage is no doubt the trait for which he is most adored.

It happens that Lindbergh’s act occurred soon after a war in which there were few heroes. We have elected none of its generals to high office, though the Germans have treated Hindenburg as a hero in defeat. The daring of the flight from New York to Paris was emphasized by the disappearance of the well-known aviators who had just before tried it in the opposite direction. Besides, the pacifists, just then very numerous, were pleased at a display of courage in non-military activity.

Physical courage is not usually of much value in outstanding pacific pursuits. The hero beats up or shoots the villain to win the heroine much oftener in the fiction magazines than in real life. It is seldom the \$1,000-a-week movie star who does the leaping from train to airplane or over chasms. If any person actually does it, it is usually an unknown extra.

In short, it is hard to display valor in such a way as to arouse wide attention, but he who succeeds in doing it becomes a hero. This is why some convicted murderers receive heaps of love letters, and why Robin Hood and his modern successors in Corsica, Sardinia, and the wild west have become popular idols. When notorious bandits were publicly hanged, admiring throngs gathered about the scaffold, and some of the spectators hurried away to commit the very same crimes from which they had just been “deterred.”

It is not in any sense Lindbergh’s fault, but it is undoubtedly true, that the wide publicity given to his exploit of physical courage has stimulated violent robberies and burglaries on the part of young men who do not know any less anti-social way of becoming the protagonists of newspaper stories. There has been a great flock of criminal acts by youths who, when detected, ask for mercy on the ground that they are saving up to buy airplanes for the purpose of serving their country.

The courageous criminal becomes a hero at least in his own sub-community. Women flock about him not merely because a good haul brings him in a large sum of money, which he is pretty sure to spend recklessly, but above all because the halo of valor hovers about his head. In the old days, he lived a short life but a merry one. He still can aspire to luxuries which would be altogether beyond his reach if he remained a mechanic or a bookkeeper all his life. A long prison sentence is not pleasant, even in the modern penitentiaries that are sometimes laughed at as "country clubs," but, after all, a hero does not think too much about the cost of failure. If he did, he would cease to be a hero.

According to Clarence Darrow, four-fifths of all crimes (I suppose he means, of those punishable by death or prison sentences) are crimes of property. The economic motive, as it ordinarily appears in anti-social acts, perhaps requires no elaborate analysis. The lure of easy money is general, and many respectable citizens succumb to it. They accept stock market tips from their bootblacks, buy gold bricks at special prices, and bet on immovable horses.

So general is the inclination to avoid paying taxes that the rate on intangibles, objects that can easily be kept out of sight, is sometimes placed at a small fraction of that on visible personal property. The thoroughly honest man, especially in those states where no such provision exists, is subjected to a rate of taxation perhaps half a dozen times as great as that of his neighbors. The great majority of women who return from Europe to the United States hide part of their foreign purchases from the customs officers. Slot machines that do not discriminate between coins and slugs are worthless, even if set up where only the fairly rich have access to them. There is a general feeling that it is no very serious offense to cheat the government or a large corporation.

The uncontrollable inclination to steal which is usually referred to as kleptomania causes rich people to take trifles and some thieves to carry away with much labor objects of very little value. The sufferer from such a neurosis would certainly find honesty a better policy, but the bad habit is very difficult to shake off. Allied to this weakness is the not extremely rare habitude of considering one dollar obtained in devious manners a greater source of joy than two earned in ways that are generally called honest. Those who have it are seldom classed as criminals. They are shrewd

business men, cunning schemers, men versed in social psychology. Whatever the letter of the law may be, they almost always manage to remain within it.

No form of business, certainly not agriculture, is independent of chance. Still, it is natural enough for the farmer to envy the speculator in grain futures who simply sits before a ticker or stands in the Chicago pit and grows rich without straining his muscles. Unfortunately, he is all but certain to lose if he buys options or puts up a margin on futures himself. If he profits the first time, he usually risks the original sum and the winnings until he loses it all.

I do not condemn speculative affairs and pure wagers because they sometimes lead to serious crime: after all, tender feeling for a wife or a mother may do the same thing. Betting with or risking unduly funds that are held in trust is not justifiable by any rational code of ethics. Still, such acts often go undetected. In the recent bull market for common stocks, any person who diversified his speculations and worked with not too slender a margin was fairly sure to make large profits. Bankers are supplied with sources of information about corporation earnings, and they can avoid the wilder risks. A few have been caught using bank funds, because they have plunged in a single stock or otherwise been reckless; but I dare say that hundreds of them are riding in cars or living in homes purchased as a result of the successful risking of money they were not authorized to use. Their crimes will not be discovered unless they acquire the habit of making easy money, and continue too long in their dangerous courses.

All of us are capable of succumbing to one or another form of temptation. The young man who would remain perfectly honest as a butcher's clerk may not be able to resist running off with a hundred thousand dollars' worth of negotiable bonds, put into his hands as a broker's messenger. Mercier suggests that the person who leaves valuable articles where they can be easily stolen should be prosecuted as an accessory to the crime. Not all twenty-dollar-a-week tellers seize a few hundred dollar bills and flee to Mexico; not all ten-dollar-a-day legislators take bribes from corporation lobbyists; but the honest ones experience a certain feeling of strain.

Crimes against property sometimes arise out of actual poverty, since there are people who have failed to read or appreciate the discovery of certain

ethical students of great wisdom that it is better to steal than to starve. The capitalist system, at least in its present form, often throws out of employment men and women who are accustomed and willing to work. Human beings, with very rare exceptions, like to eat every day and to protect themselves against cold weather. Some of them prefer the beans and watery stew of jails to empty dishes, and the shelter of vermin-infested cells to the biting sting of the north wind.

But the fact that the persons who commit offenses which the law deals with severely are much more often poor than rich is not sufficient to justify us in concluding that poverty is the chief cause of criminality. Such a trait as laziness leads at once to crime and poverty in the man who has not overbalancing advantages whether in himself or his external circumstances. That socialism could do away with, or much reduce, crime is highly improbable. Anarchism, by abolishing criminal law, would in a sense put an end to crime, but there would still remain desirable and undesirable conduct from the communal point of view.

Mr. Darrow has summed up some of the observed relations of cause and effect in crime. "There can be no doubt," he says, "that more crimes against property are committed in cold weather than in warm weather; more in hard times than in good times; more by the unemployed than by the employed; more during strikes and lockouts than in times of industrial peace; more when food is expensive and scarce than when it is cheap and plenty; more, in short, when it is harder to live."

Similarly, crimes of violence which do not arise out of burglary or robbery have their own seasons. They are more frequent in hot weather than in cold. "More crimes of violence are committed after wars or during heated political campaigns than at other times; more of such crimes when, either by climatic or other conditions, feelings are intensified and aroused and less subject to control."

CRIME AND ABNORMALITY

There was once a boy who cut off the head of a sleeping man for the purpose of enjoying his surprise upon awakening and finding himself headless. It was not very long ago that two young men apparently above the average in education and intelligence killed a child for the mere thrill of slaying. In the first instance, the criminal was abnormally unintelligent or uninformed; in the second, the culprits were abnormally maladjusted to their community life.

It is now a general principle in civilized countries that some forms of mental deficiency and disease bar criminal prosecution, or at least, that those who suffer from them are not to be treated in the same way as criminals who are held to be entirely responsible for their actions.

“Responsibility” in the classical theories of Jurisprudence rests upon free will. That the contradictory of free will, determinism, is alone in accord with modern scientific concepts, I have tried to show in other Little Blue Books. Mr. McCabe’s elaborate discussion of this point also shuts out the necessity of dealing with it at length here. Determinism alone does not serve to prove the punishment of criminals unjustifiable. If electric chairs and prisons deter from crime, or remove dangerous people from free society, we are no more unreasonable in making use of them than in shooting the tiger that is about to attack us. Indeed, the very idea of deterrent punishment is nonsensical if the will does not depend upon external factors. (Perhaps it is nonsensical anyway, but we need not consider the matter here.)

Vindictive punishment finds no rational support when its basis of free will is removed. There is no good reason why a slayer should be executed or imprisoned for life unless it appears likely that he or she would murder again if released. This principle is followed to a certain extent with regard to those who are legally held to have been insane at the time of the killing. For instance, the bootlegger Remus was found not guilty of the murder of his wife, on the ground of insanity, but released from custody on the finding that he was no longer insane. At the time of this present writing, he has

committed no more murders; and evidence that his acquittal has made other men kill their wives is conspicuously lacking.

If Remus had actually put his wife to death as the result of a psychosis, his ability to speak lucidly at his trial might have been insufficient reason for releasing him. Generally speaking, the defective or mentally diseased criminal should not be freed from an institution until there is some evidence of a cure; and this must be such as to convince psychiatrists rather than lay jurymen.

Clarence Darrow says that “from ten to twenty percent of the convicted are, in fact, insane at the time the act was committed.” But a lawyer is not likely to set up a plea of insanity unless the crime is one of a capital nature. His clients would rather serve five years in prison than be put into an asylum, presumably for life. More than half the prison population, according to Mr. Darrow, is made up of “the demented, the imbecile, and the clearly subnormal.”

There are no definite criteria of intellectual and moral normality. It may be that half the people outside prison walls are suffering from psychoses or serious neuroses, or are “clearly subnormal” in the same sense that many convicts are. The general population has not been subjected to systematic psychiatric examination. A large number of men was subjected to intelligence tests by the United States Army, and if the results prove anything at all, it is that the normal adult mind is not better than that of the usual thirteen-year-old boy.

Goddard, as a defender and expositor of intelligence tests, says: “Every investigation of the mentality of criminals, misdemeanants, delinquents, and other anti-social groups has proved beyond the possibility of contradiction that nearly all persons in these classes and in some cases all are of low mentality,” many of them being feeble-minded. Porteus, who, like Goddard, has worked at the Vineland institution for the mentally deficient, points out that some of the inmates committed because of offenses against society are stupid rather than seriously deficient.

“Regarding only the cases who are at feeble-minded levels,” he says, “the oft-quoted statement that every defective is a potential criminal loses much of its force, since only 13% of these cases show delinquent tendencies. The

percentage is probably not much higher than it would be for an equal number of normal unselected cases of similar social grade.”

Professor Rudolf Pinter reports the results of a number of tests made of delinquent children, from 7% to 93% being listed as feeble-minded. Among delinquent adults, various investigators have found from 16% to 54% at feeble-minded levels. Pinter, although also a defender of intelligence testing, says the faulty construction of the scales used in these examinations of criminals makes the conclusions invalid. He is willing to say only that delinquents are probably of lower average intelligence than non-delinquents.

Havelock Ellis, in *A Study of British Genius*, says: “I find that at least 160, or 16 percent, of our 975 men were imprisoned, once or oftener, for periods of varying lengths, while many others only escaped by voluntary exile. It is true that the causes of imprisonment were various, but even imprisonment for such a cause as debt may be taken to indicate an anomalous lack of adjustment to the social environment.” In short, there is evidence to support the view that criminality is about as common among men of genius as among the feeble-minded.

One source of error in statistics linking low intelligence with crime should be noted. Investigations are carried on among those criminals who have been caught, usually while they are in prison. A great many people have committed one or more serious offenses without ever being suspected, or at least convicted, of crime. It is probable that these are, as a whole, much less stupid than the average convict.

If people always subjected their proposed acts to the light of reason, no doubt crime would be much rarer than it is. However, most of the things we do arise out of habit or impulse. Emotional and volitional instability often goes with intellectual power of a high order. Besides, if we could truly say of a man that he is incapable of losing his temper, no matter what the provocation, we should be putting him into the class of abnormal, perhaps of constitutionally inferior, people. Whoever can lose his temper is a potential murderer.

Criminals are no more possessed by Satan than non-criminals are filled with the glory of the Holy Ghost. Their motives are such as we can understand, no matter how blameless we may be. To say this is not to extenuate anti-

social acts, if they really violate the rights of others. The community must protect itself against those of its members who habitually outrage its peace and security. Only, in its own interests, it should always deal with crime rationally rather than hysterically. For its own sake, it should refrain from committing crimes against criminals.

FOOTNOTES:

[\[1\]](#) See Little Blue Books Nos. 411 and 1448.

Transcriber's Notes

Perceived typographical errors have been silently corrected.

Footnotes have been moved to the end of the text.

*** END OF THE PROJECT GUTENBERG EBOOK THE
PSYCHOLOGY OF THE CRIMINAL ***

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